

26STCV06318 26STCV06318

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-03

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Case Number: 26STCV06318 Hearing Date: August 3, 2026 Dept: 512

HEARING DATE: Mon., August 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Damola

v. Mobilias Ins. Co, et al. PET. FILED: 02-26-26

CASE NUMBER: 26STCV06318

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL CONSOLIDATED ARBITRATION

MOVING PARTY: Petitioner Omotayo Damola

RESP. PARTY: Respondent United States Fire Insurance
Company

MOTION TO COMPEL CONSOLIDATED ARBITRATION

(CCP § 1281, et
seq.)

TENTATIVE RULING:

Petitioner

Omotayo Damola's Motion to Compel Consolidated Arbitration is CONTINUED to Monday
August 24, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

Respondent Mobilitas Insurance

Company is to file its Opposition within 10 days of the Court's order.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 21, 2026 ☐

Late ☐ None

REPLY: Filed

on July 27, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On February 26, 2026, Petitioner

Omotayo Damola ("Petitioner") filed a Petition to Open Unlimited Civil Court File to Establish Jurisdiction Over Uninsured/Underinsured Motorist Arbitration against Respondents Mobilitas Insurance Company ("Mobilitas") and Blue Star Claims, LLC ("Blue Star").

On March 4, 2026, Petitioner filed

Proof of Service of the Petition on Mobilitas.

On March 13, 2026, Blue Star filed an

Opposition to the Petition. On April 14, 2026, Petitioner filed a Reply. On June 8, 2026, U.S. Fire filed an Opposition to the Petition. That same day, Petitioner filed a Reply.

On March 16, 2026, Petitioner filed

Proof of Service of the Petition on Blue Star.

On May 6, 2026, Petitioner filed an Amendment to Complaint to rename Blue Star as United States Fire Insurance Company ("U.S. Fire").

On June 9, 2026, Petitioner filed the instant Motion to Compel Consolidated Arbitration (the "Motion").

On July 21, 2026, U.S. Fire filed an Opposition.

On July 27, 2026, Petitioner filed a Reply to U.S. Fire's Opposition.

That same day, Petitioner also filed a Reply to an alleged Mobilias' Opposition.

On July 28, 2026, U.S. Fire filed an Objection to evidence filed in support of Petitioner's Reply.

II. Procedural Issues

As an initial matter, the Court notes that while Petitioner filed a Reply to Mobilias' Opposition, there is no Opposition from Mobilias regarding the Motion in the Court's docket. The Court may not consider or rule on a party's opposing brief that is not in the record.

Given the Reply filed regarding Mobilias' Opposition, the Motion is CONTINUED to allow Mobilias an opportunity to file its Opposition to the Motion with the Court.

III. Conclusion and Order

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